

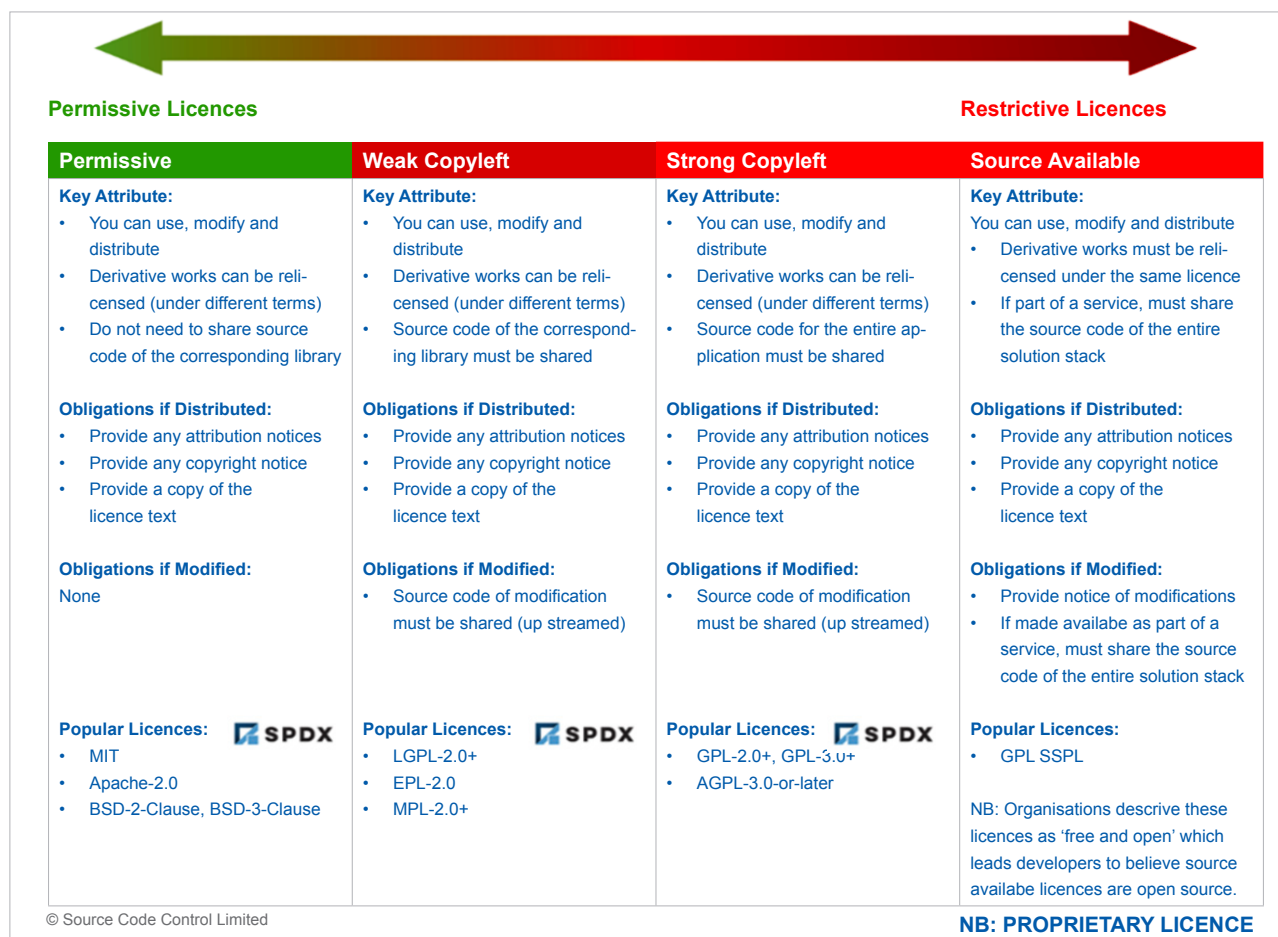


Figure 2: Open source licence spectrum depicting the open source licence obligations

Artifex vs Siemens Product Lifecycle Management Software Inc.: Artifex Software filed a lawsuit against Siemens Product Lifecycle Management Software Inc. in 2019 for unauthorised copying and distribution of one of the former's products called 'Ghostscript'.

Ghostscript (a dual-licensed component) is a well-known interpreter for the PostScript language and PDF files. Artifex released Ghostscript under a commercial licence or free of charge under the terms of the GNU Affero General Public License (AGPL). The company alleged that Siemens had been using Ghostscript in one of its software products known as 'Solid Edge' without adhering to the licence obligations of AGPL or purchasing the commercial licence.

Siemens dismissed the suit.

According to Miles Jones, president of Artifex Software, "Artifex has long offered such companies a straightforward choice: Comply with the terms of the AGPL, sign a commercial licence agreement with Artifex, or do not distribute Ghostscript. Siemens has refused each of these options, which is why we filed our lawsuit. We take our obligation to protect our intellectual property seriously."

Software Freedom Conservancy vs Vizio Inc.: In a recent open source licence non-compliance case, Software Freedom Conservancy (SFC) filed a lawsuit against Vizio Inc. for what it called repeated failures to fulfill even the basic requirements of the General Public License (GPL).

SFC is a non-profit organisation focused on ethical technology. The

lawsuit was filed against Vizio's television products built on its SmartCast operating system, which is based on Linux. Since Linux is licensed under GPLv2, SFC alleges that Vizio has incorporated a GPL component into its TV's software and has failed to comply to the requirements of GPL.

As a user of GPL licensed components, Vizio is obliged to provide end users the freedom to run, study, share, and modify the software along with a copy of the source code of its TV software. However, SFC alleges that Vizio has not been complying with any of the licence obligations and continues to use the component in its software.

Another aspect that makes this lawsuit unique is that SFC is not suing Vizio on behalf of a copyright holder of a particular open source component.